

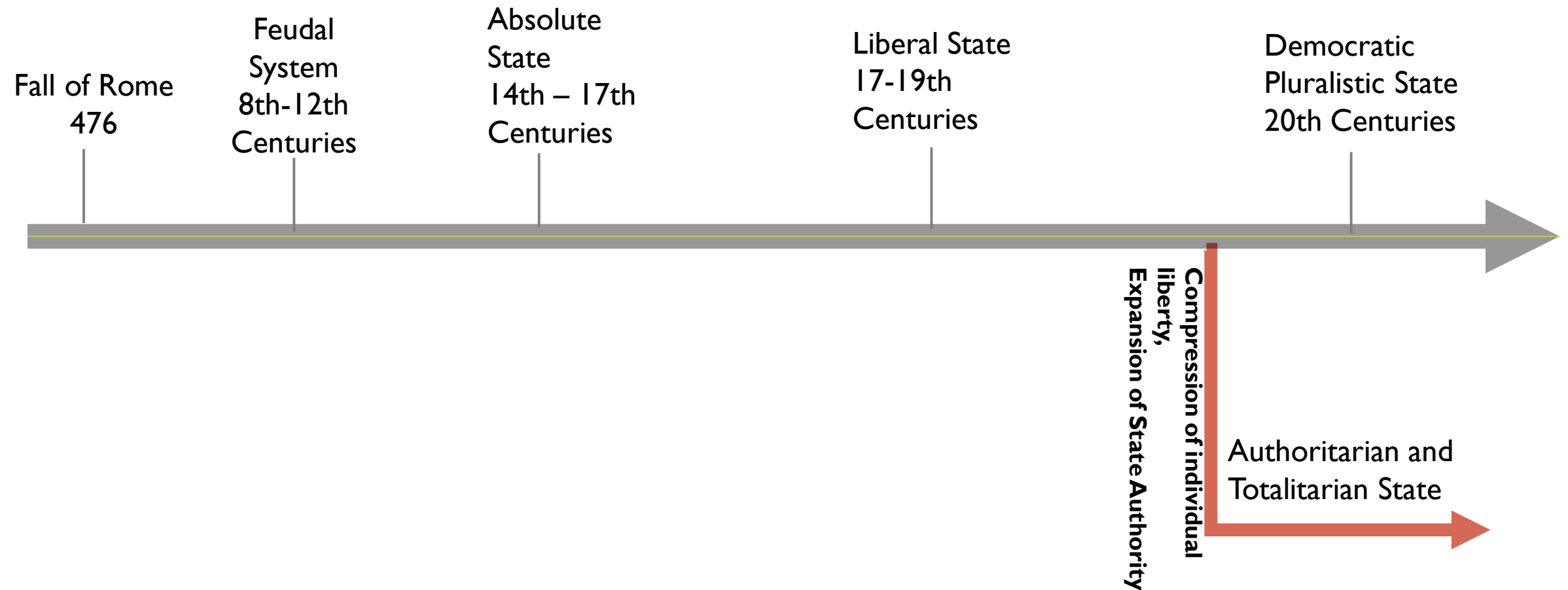
Introduction to the Legal System II

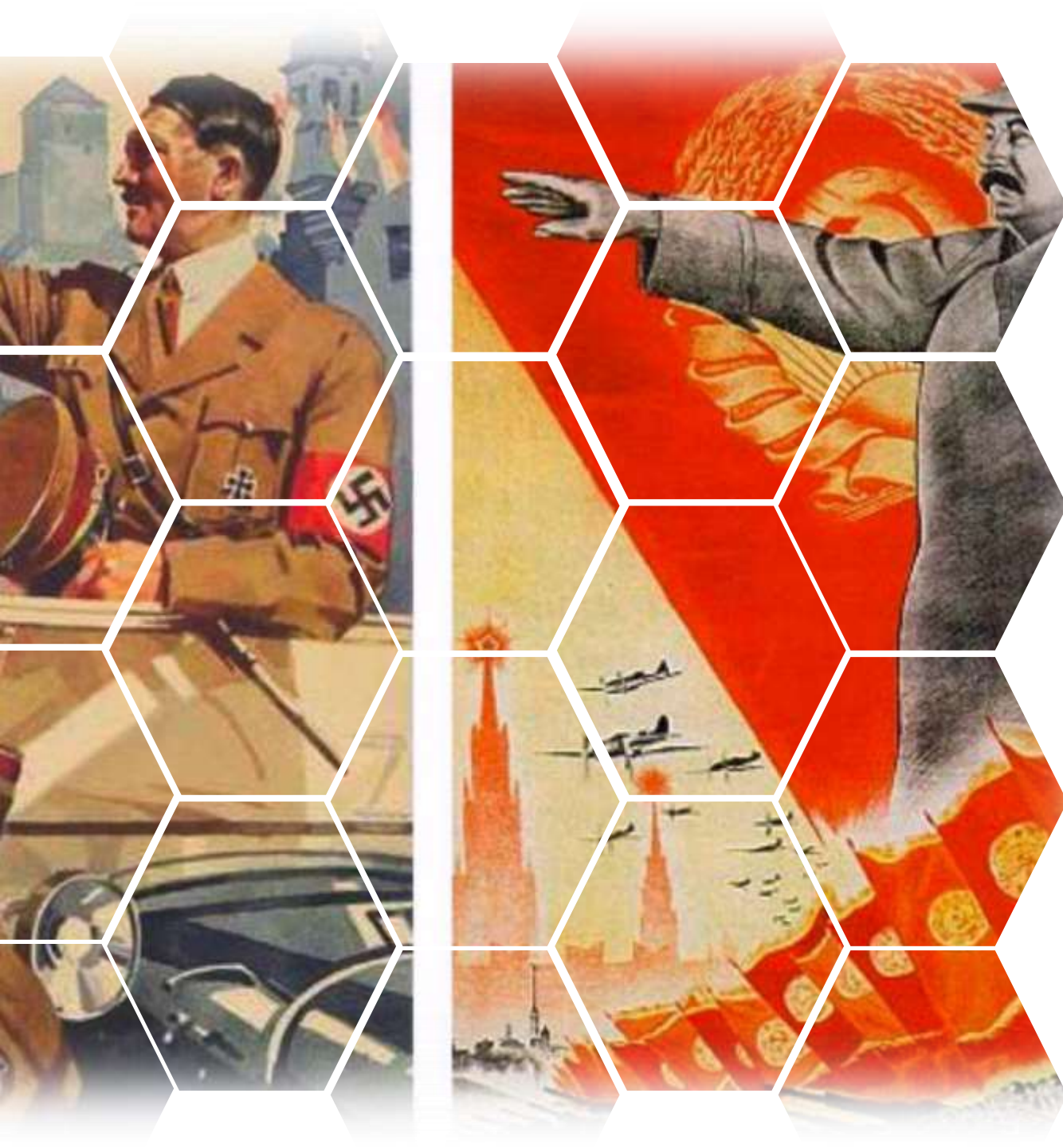
Forms of State

Alternatives to the Democratic Pluralistic State

Lecture 2

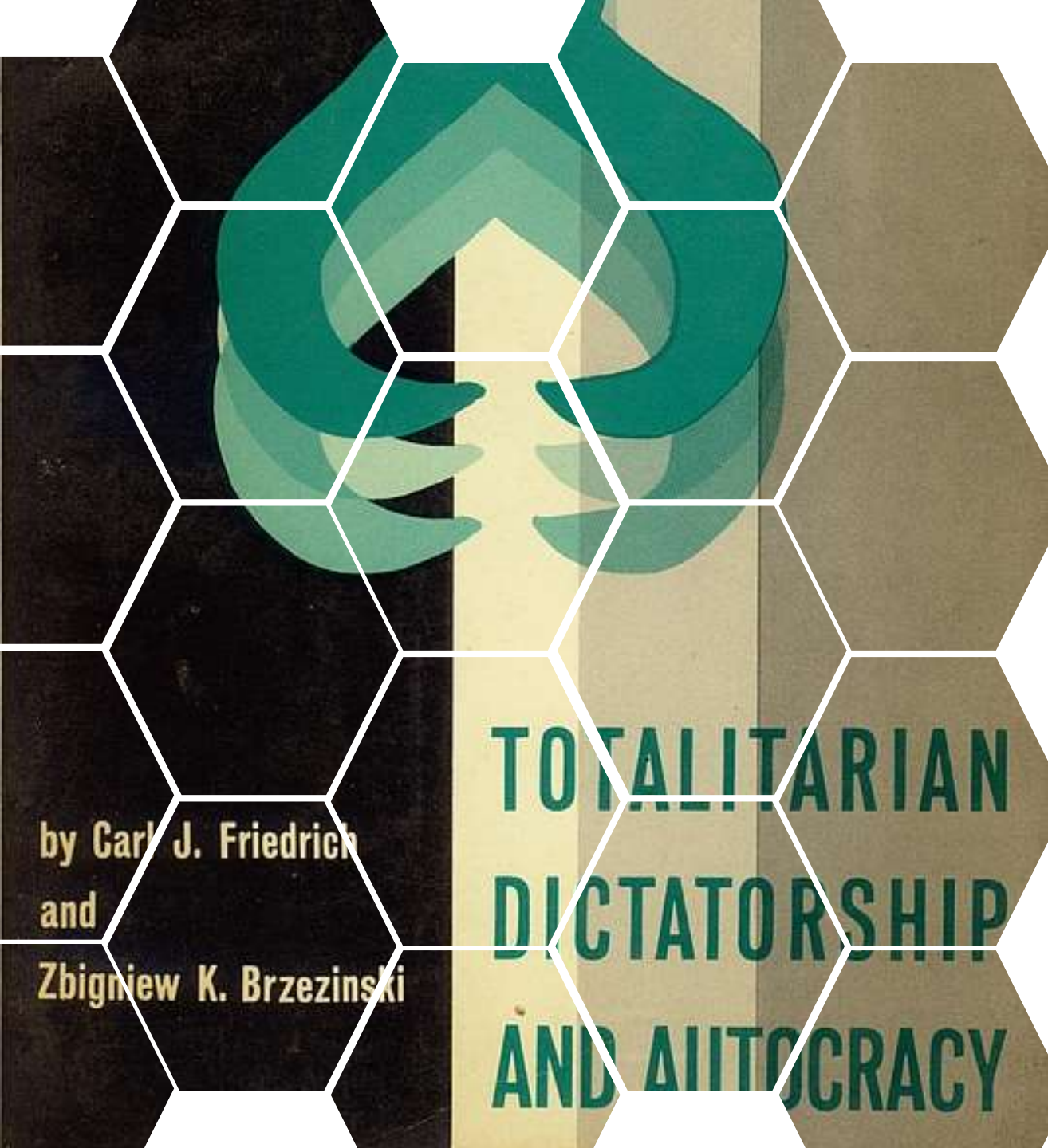
Historical Evolution





Alternatives to the Democratic Pluralistic State

- In some countries, the crisis of the Liberal State did not lead to the Democratic Pluralistic State, but to:
- **Totalitarian or Authoritarian States**
- **Socialist State**



Friedrich and Brzezinski **Totalitarian Dictatorship and Autocracy, 1956**

- Six criteria that a regime must meet in order to qualify as “totalitarian”:

- 1) An official ideology;
- 2) A single political party;
- 3) A centrally directed economy;
- 4) Party control of mass communications;
- 5) Party control of the military;
- 6) A secret police.

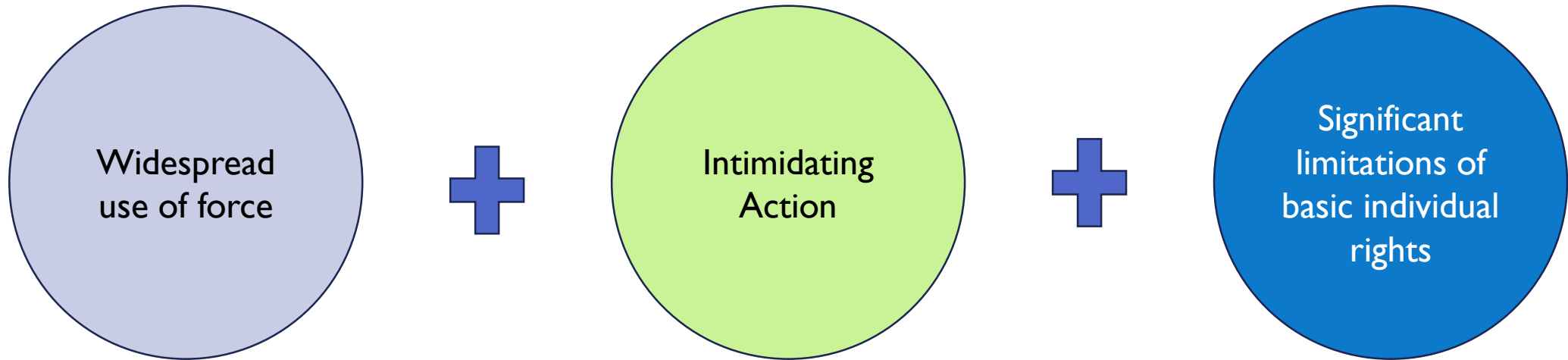
Juan Linz, 1964, "An Authoritarian Regime: The Case of Spain"

- Limited political freedom
- A controlling regime that justifies itself to the people as a “necessary evil” uniquely capable of coping with “easily recognizable societal problems” such as hunger, poverty, and violent insurgency
- suppression of political opponents and anti-regime activity
- executive with vague, shifting, and loosely-defined powers



Totalitarian and Authoritarian States

- Absence of checks and balances with regard to the command structure of the State
 - Weakening of judicial independence
 - Weakening or elimination of parliamentary prerogatives
 - Executive domination of the bureaucracy and the military



Totalitarian and Authoritarian States

Distinguishing feature is the role of the political parties

Totalitarian States

Have strong one-party systems
Are ideologically-based
Aspire to establish complete political, social and cultural control over the subjects

Authoritarian States

Have weak party systems – driven by lust for power of individual leaders or juntas.

E.G. The Fascist State

- Emerges out of a **crisis of the Liberal State**:
 - The Liberal system was unable to defend national interests due to political fragmentation
- Suffocated political pluralism and concentrated of power in the hands of specific Party institutions
 - Grand Council of Fascism
- Concentration of power in the hands of the Head of Government – both executive and legislative powers.
- “Everything within the state, nothing outside the state, nothing against the state.”
- State interference with all aspects of social and private life
 - General suppression of individual rights
 - Return to a Command Economy – **Corporatism**
 - How Fascist is Donald Trump?



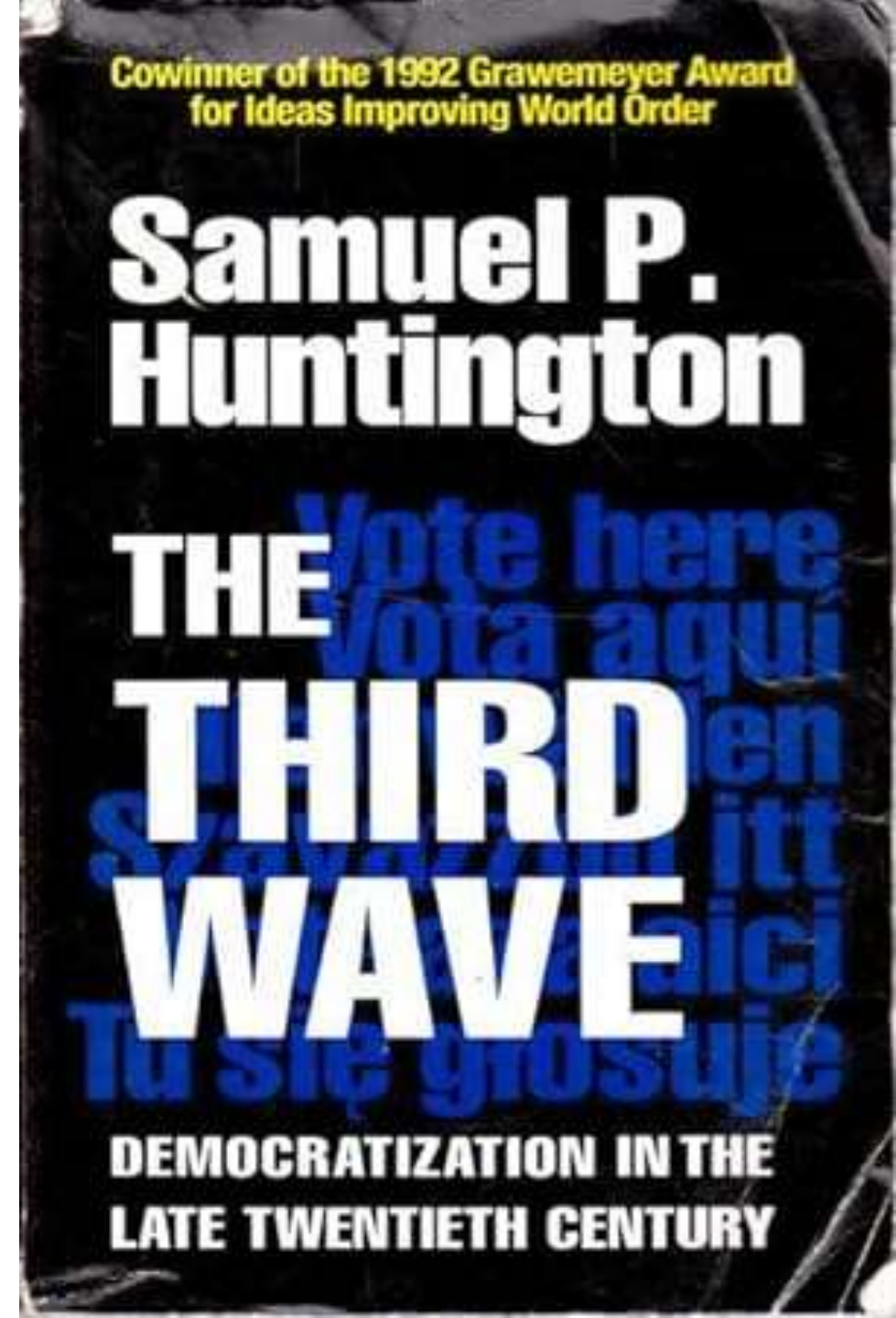
Socialist State

- Based on the theories of Marx and Lenin
- Dictatorship of the Proletariat
 - elimination of the bourgeoisie
 - egalitarian society without classes nor social conflict
- Collectivist economy
 - monopoly of the State over means of production
 - planned economy
 - abolition of private property
- Strong central government
- With variations, model adopted in many States in Eastern Europe (Soviet Bloc) + other parts of the world
- Current socialist states – China, Cuba, Laos, Vietnam



Waves of Democratization

- Samuel Huntington – 1991 – *The Third Wave*
- Transitions from non-democratic to democratic regimes came in **waves**:
 - Periods in which transitions to democracy significantly outnumber transitions in the opposite direction
- **First Wave**: From early 19th century until the 1920s.
- **Second Wave**: Immediate aftermath of World War II
- **Third Wave**: from the mid-1970s till the breakup of the Soviet Union



4th Wave or Democratic Backsliding?

- Fourth Wave— starting 2010 - collapse of several dictatorships in the Middle East and North Africa (Arab Spring).
 - But after the Great Recession many countries have had [democratic backsliding](#).
 - A new Arab Spring? 2019 –Sudan, Lebanon, Algeria, Iraq.
- What is the State of democracy today?
 - You can consult the [Economist Intelligence Unit's Democracy Index](#)
 - [The Guardian Arab Spring Infographic](#)



Protests in Belarus

- Gained independence in 1991 after the dissolution of the USSR.
- A.Lukashenka in power from 1994.
 - – Europe's last dictator?
- 2020s presidential [elections and protests](#).



Iranian protests 2022

- now

- Death in police custody of Mahsa Amini on the 16th of Sep 2022
- Calls to overthrow the Supreme Leader Ali Khamenei
- “Woman, Life, Freedom”
- At least 551 people were killed due to the intervention of the police



Liberalism and democracy



Democracy

It concerns questions on **who rules**.

From Greek – “rule by people” – who rules.

It requires the people be sovereign, typically through the structures of representative democracy.

Not necessarily Liberal - Illiberal democracy

- Hungary
- Poland?



Liberalism

It concerns the **limits on government**.

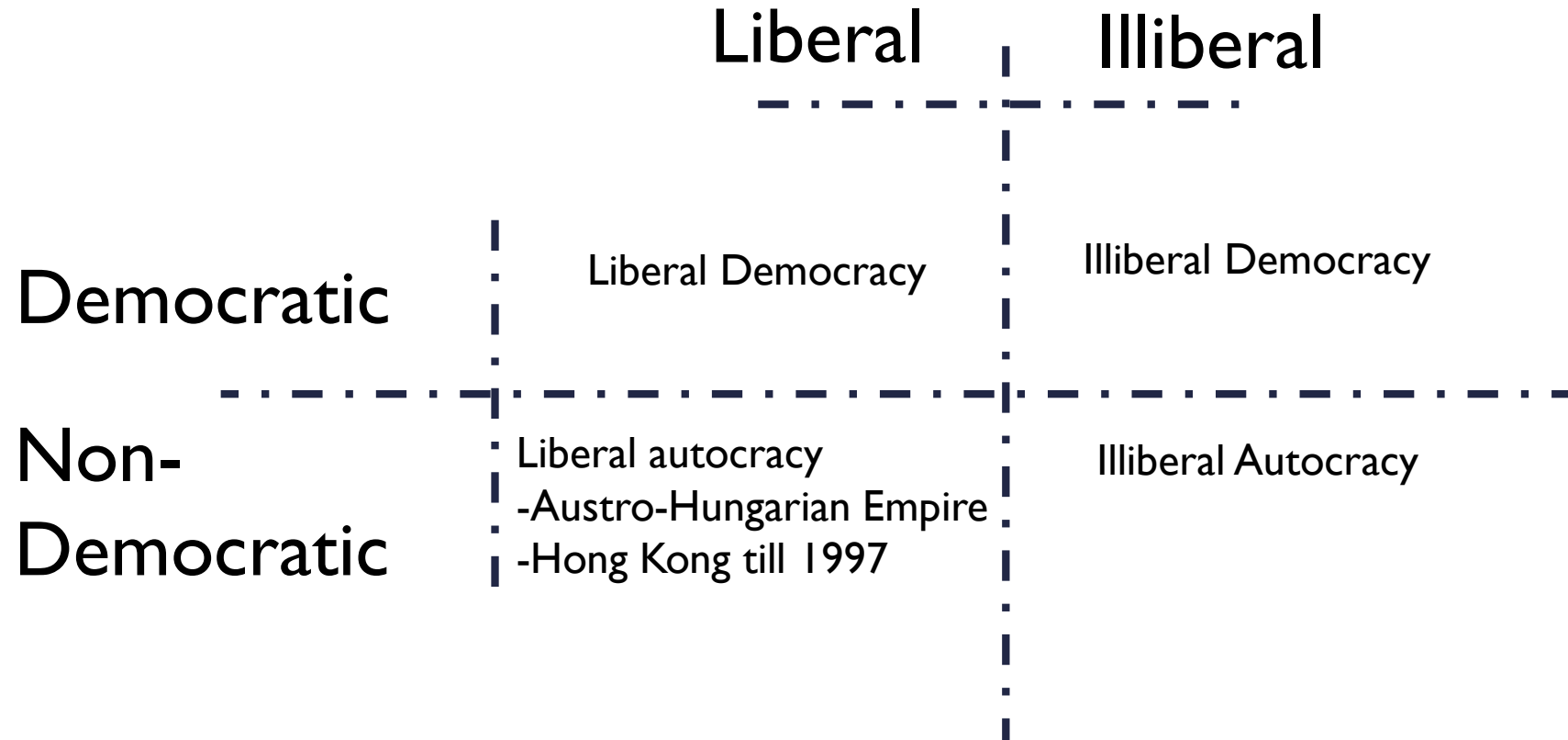
From Latin – “free” – a State that protects individual liberty vis a vis the Government.

Not to be confused with other notions of liberalism:

- In the US – liberalism denotes support for an activist government - opposite to conservatism)
- In Europe – liberal indicates parties that support the free market and a more limited form of government)

The limits designed to protect individual freedom typically include human rights and the rule of law and are set forth in the Constitution.

Liberalism and democracy



Democracy

The tension between constitutional liberalism and democracy – centers on the scope of governmental authority



Liberalism

Illiberal Democracy

- Constitutional liberalism – the limitation of power of the state
- Democracy – accumulation of power and its use by people
- Illiberal democracy – Fareed Zakaria in “The Rise of Illiberal Democracy” *Foreign Affairs* (1997)
 - Describe countries that initiated transition from authoritarian regime and adopted free elections but failed to build the liberal institutions that could guarantee individual rights

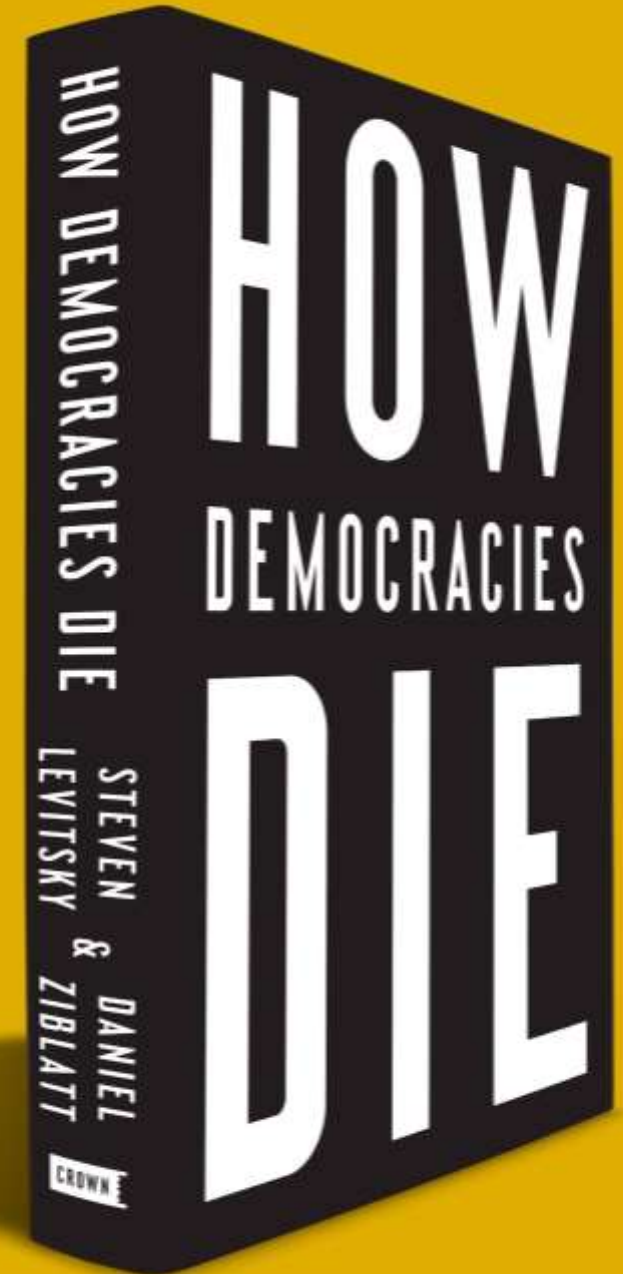


Orban 2014, Illiberal democracy Speech:

“the defining aspect of today’s world can be articulated as **a race to figure out a way of organizing communities**, a state that is most capable of making a nation competitive. This is why, Honorable Ladies and Gentlemen, a trending topic in thinking is understanding **systems that are not Western, not liberal, not liberal democracies, maybe not even democracies, and yet making nations successful**. Today, the stars of international analyses are Singapore, China, India, Turkey, Russia. And I believe that our political community rightly anticipated this challenge. And if we think back on what we did in the last four years, and what we are going to do in the following four years, then it really can be interpreted from this angle. We are searching for (and **we are doing our best to find, ways of departing Western European dogmas, making ourselves independent from them**) the form of organizing a community, that is capable of making us competitive in this great world-race.”

Destruction of democracy

- At the hands of men with guns: during the Cold War, *coups d'état* (Argentina, Brazil, Greece, Nigeria, Turkey, Egypt, Thailand)
- But another way to break democracy –at the hands of elected leaders who subvert the process that brought them to power (Hitler, Chavez, ...)
- There is no single moment – no *coup*, etc. where the regime crossed the line into dictatorship, democracy's erosion is imperceptible



How to identify authoritarianism?

1.

Rejects, in words or action, the democratic rules of the game

2.

Denies the legitimacy of opponents

3.

Tolerates or encourages violence

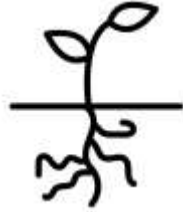
4.

Indicates a willingness to curtail the civil liberties of opponents, including the media

Democracy's gatekeepers: Political parties and party leaders



They can keep would-be authoritarians off party ballots at election time



Parties can root out extremists in the grass roots of their own ranks



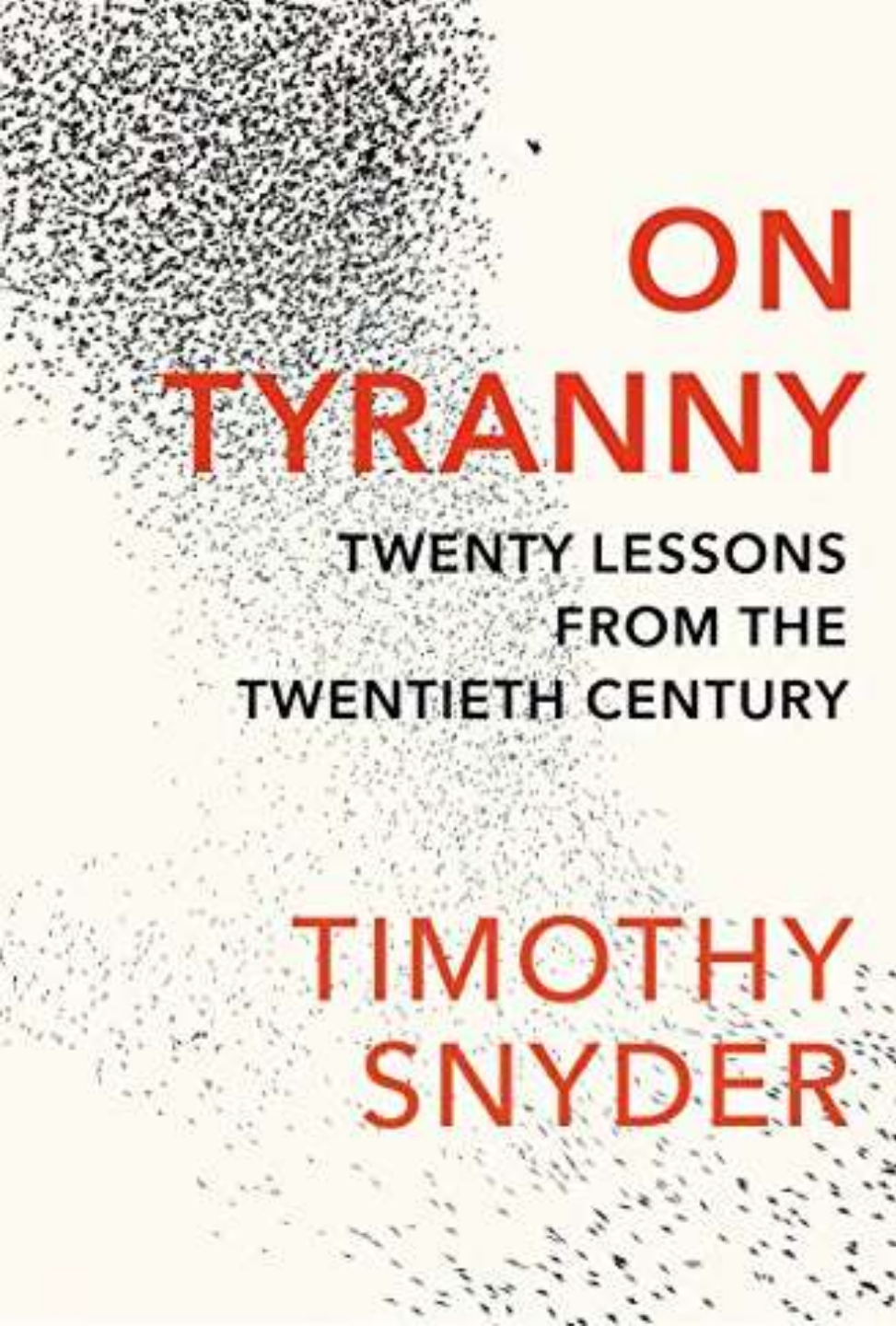
Can avoid alliances with antidemocratic parties and candidates



Can act to systemically isolate, rather than legitimize, extremists



Must forge a unified front to defeat extremists whenever they emerge

The book cover for 'On Tyranny' by Timothy Snyder features a light beige background with a dense, dark, grainy texture on the left side. The title 'ON TYRANNY' is written in large, bold, red capital letters. Below it, the subtitle 'TWENTY LESSONS FROM THE TWENTIETH CENTURY' is in smaller, black capital letters. At the bottom, the author's name 'TIMOTHY SNYDER' is in large, bold, red capital letters.

ON TYRANNY

TWENTY LESSONS
FROM THE
TWENTIETH CENTURY

TIMOTHY
SNYDER

Further discussion

- *‘History teaches us the tricks of authoritarians. We can’t allow ourselves to fall for them.’ – Timothy Snyder*

1. Do not obey in advance.
2. Defend institutions.
3. Beware the one-party state.
4. Take responsibility for the face of the world.
5. Remember professional ethics.
6. Be wary of paramilitaries.
7. Stand out.
8. Believe in truth.
9. Investigate...